

Stereo. HC JD A 38.
Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Criminal Appeal No.653 of 2016
(Muhammad Saeed Vs. The State)

J U D G M E N T

Date of hearing	17.12.2019
Appellant by	Malik Imtiaz Haider Maitla, Advocate.
State by:	Mr. Muhammad Ali Shahab, Deputy Prosecutor General

SADIQ MAHMUD KHURRAM, J. The appellant namely Muhammad Saeed has submitted the present appeal against the order dated 29.08.2016 passed by learned Judge Anti-Terrorism Court-II, Multan vide which the appellant was directed to deposit Rs.50,000/- as penalty in the learned trial court as he had stood surety for the accused Muhammad Qasim (Proclaimed Offender) and failed to produce him before the learned trial court and the surety bond of the appellant was forfeited.

2. Shortly narrated the facts are that the appellant namely Muhammad Saeed stood surety of Muhammad Qasim (Proclaimed Offender), accused in case FIR No. 249 of 2014, dated 14.10.2015, registered at Police Station Jallah Arain in respect of an offence under section Section 11-EE of the Anti Terrorism Act, 1997, for his appearance before the learned trial court during the proceedings of pre arrest bail from 02.11.2015 till 10.11.2015. On 10.11.2015 the ad-interim pre arrest bail granted to Muhammad Qasim (Proclaimed

Offender) was **confirmed** by the learned trial court subject to his furnishing of fresh bail bonds in the sum of Rs.50,000/- (Rupees fifty Thousand only) with one surety in the like amount to the satisfaction of the learned trial court. Thereafter the accused Muhammad Qasim (Proclaimed Offender) neither furnished any fresh bail bonds nor appeared before the learned trial court. The said accused was summoned through *bailable* warrants and subsequently through non-bailable warrants, however, he remained absent and was declared a proclaimed offender. The proceedings under section 514 Cr.P.C. were initiated against the present appellant and ultimately vide order dated 29.08.2016, the learned Judge, Anti-Terrorism Court-II, Multan burdened the appellant with the penalty equal to the amount as mentioned in the surety bonds worth Rs.50,000/-. Hence, this appeal.

3. The learned counsel for the appellant contends that the appellant submitted the surety bond for a particular time which was only valid till 10.11.2015 and he was not responsible for the absence of the accused (Muhammad Qasim) from the Court after the said date.

4. Conversely Mr. Muhammad Ali Shahab the learned Deputy Prosecutor General, representing the State, opposed the arguments advanced by learned counsel for the appellant and defended the impugned order wholeheartedly

5. The contention of the learned counsel with regard to the validity of the bail bond after 10.11.2015 is not without force. The accused was granted interim bail till 10.11.2015 and the surety bond submitted by the appellant was only valid till that date and could not be treated to have been extended automatically. The surety bond already submitted by the appellant for a specific period could not be treated valid for the extended or subsequent period. Muhammad Qasim accused did not disappear during the period for which the surety bond was submitted by the appellant, therefore, he was not responsible for the absence of the accused after 10.11.2015 and had no liability in

this behalf. It is clear from the surety bond tendered by the appellant before the learned trial court that he had taken responsibility for the conduct and appearance of Muhammad Qasim accused in the learned trial court till 10.11.2015 . It is a settled principle of law that the purpose of standing surety of the accused is for production of the person/accused for whom surety was given and when the accused appears before the court the liability of surety is over and the matter rests between the court and accused person. The surety (appellant) was not under any obligation to produce the accused on a date for which he had not executed the bond. In fact it is a contract between the surety and the Court that in case the accused defaults in appearance, only on a date for which the surety bond is executed, the surety would be responsible for the same.

6. Before parting with the order, it is pertinent to mention here that typically what happens is that an interim bail is granted up to a certain date, thereafter, if the same is extended then care should be taken that accused shall furnish bond up to that date or suitable amendment be incorporated in the bond which is obtained from the sureties that they will be responsible to produce the accused on next date of hearing or on any date in the bail matter fixed subsequent to that date. So far as the present form of *Surety Deed*, being used in the courts of first instance, is concerned, it provides that the surety will be responsible for production of the accused on one date only which is provided next after grant of ad interim bail. On account of this defect the *Zamanat Nama* ,which is available in printed form , is accepted in routine without realizing the consequences as to what will be situation, in case the matter is adjourned to some other date and the bail is extended further. The printed form therefore, should incorporate a covenant that the surety shall be bound to produce the petitioner/accused till the disposal of application for the pre-arrest bail or in the alternative the surety should give an undertaking to produce the accused till then. This Court is observing this procedure

and through the surety deed, the surety undertakes to produce the accused before the Court on each and every date till the decision of the petition.

7 In view of this matter, the order passed by the learned Judge Anti-Terrorism Court-II ,Multan burdening the appellant to deposit Rs. 50,000 as penalty, is not lawful and as such cannot be maintained. This appeal is therefore, allowed and the impugned order is set aside.

(TARIQ SALEEM SHEIKH)
JUDGE

(SADIQ MAHMUD KHURRAM)
JUDGE

Raheel

Approved for Reporting

Judge